BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHIBENCH
COURT III
NEW DELHI

Company Application No.CA (CAA) 69/ND/2021

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND
IN THE MATTER OF SCHEME OF ARRANGEMENT

AMONGST

- **Six Sigma Software Private Limited.**

  Having Its Registered Office At

  310, Gedore House,

  51-52, Nehru Place

  New Delhi-110019.

...Applicant Company No. 1/Demerged Company No. 1

And

- **KMG Infitech Private Limited**

  Having Its Registered Office At

  Flat N0 310, Gedore House,

  51-52, Nehru Place

  New Delhi-110019.

...Resulting Company No.1/Applicant Company No. 2

And

- **Key Management Technologies Private Limited**

Having Its Registered Office At

Flat No.310, Gedore House,

51-52, Nehru Place

New Delhi-110019.

... Resulting Company No.2/ Applicant Company No. 3

Order Delivered on: 23.07.2021

Coram:
Dr. P.S.N. PRASAD
Hon'ble Member (Judicial)
SHRI. NAREANDER KUMAR BHOLA
Hon'ble Member (Technical)

ORDER

SHRI. P.S.N. PRASAD, HON'BLE MEMBER (J)

1. This is an application filed by the applicant companies under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (for brevity 'The Act') read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'The Rules') in relation to the Scheme of Arrangement by way of demerger (for brevity the "SCHEME")

involving demerger of Six Sigma Soft Ware Private Limited and KMG Infitech Private Limited and Key management Technologies Private Limited.

2. An Affidavit in support of the application sworn for and on behalf of all Applicant Companies has been filed by Mr. Vijay Mendiratta and Ms. Poornima Rampal being the authorized representative of the applicant companies.

3. It is represented that the Scheme does not contemplate any corporate debt restructuring exercise as contemplated under Section 230(2) of the Act. Learned Counsel has taken us through the averments made in the application as well as the typed set of documents annexed there with.

4. It is further represented that the application filed by the applicants is maintainable in view of Rule 3(2) of the Rules. Learned Counsel also represented that the registered offices of all the applicant companies are situated within the territorial jurisdiction of this Tribunal and fall within domain of Registrar of Companies, NCT, New Delhi.

5. In relation to the Applicant Company No. 1 in the Scheme, it has been represented that company has 5 equity shareholders. We are further apprised that the Applicant Company No.1 has nil Secured and 1 Unsecured

Creditors. As the company has no secured creditor, the requirement of convening meetings of secured creditors does not arise. In relation to the Shareholders and Unsecured Creditors, the applicant company no.1 seeks dispensation from convening and holding of their respective meetings on the ground that 4 out of 5 Shareholders holding more than 95% in value have given their consent in the form of affidavit as well as the Unsecured Creditors have given their consent in the form of affidavit.

6. In relation to the Applicant Company No. 2 in the Scheme, it has been represented that company has 15 equity shareholders. We are further apprised that the Applicant Company No.2 has 1 Secured and 10 Unsecured Creditors. In relation to the Shareholders, Secured Creditor and Unsecured Creditors, the applicant company no.2 seeks dispensation from convening and holding of their respective meetings on the ground that 9 out of 15 Shareholders holding more than 95% in value have given their consent in the form of affidavit as well as 9 out of 10 unsecured Creditor holding more than 99% Unsecured Creditors have given their consent in the form of affidavit. Additionally, the consent affidavit of the secured creditor has also been placed on record.

7. In relation to the Applicant Company No. 3 in the Scheme, it has been represented that company has 2 equity shareholders. We are further apprised

that the Applicant Company No.3 has nil Secured and nil Unsecured Creditors. As the company has no secured and no unsecured creditor, the requirement of convening meetings of secured as well as unsecured creditors does not arise. In relation to the Shareholders, the applicant company no.3 seeks dispensation from convening and holding of their respective meetings on the ground both the Shareholders have given their consent in the form of affidavit.

8. The above application has been placed before us and this Tribunal proceeds to entertain the same. The registered offices of all the applicant companies are situated within New Delhi which are subject to the territorial jurisdiction of Registrar of Companies, NCT, New Delhi as well as that of this Tribunal.

9. We have perused the application and the connected documents filed along with the Scheme of Amalgamation contemplated amongst the Applicant Companies.

10. Six Sigma Soft Ware Private Limited (hereinafter referred to as "Applicant Company No 1") was incorporated on 01.09.1993 with the Registrar of Companies NCT of Delhi and Haryana under the provisions of Companies Act, 1956. The present Authorized Share Capital of the Applicant Company No.1 is Rs. 5,00,00,000/- divided into 50,00,000 Equity Shares of Rs. 10/-

each. The present Issued, Subscribed and paid-up Share Capital of the Company is Rs. 2,46,59,370/- divided into 24,65,937/- Equity Shares of Rs. 10/- each.

11. KMG Infotech Private Limited (hereinafter referred to as "Applicant Company No 2) was incorporated on 02.11.1999 in the State of NCT of Delhi within jurisdiction of the Registrar of Companies, NCT of Delhi and Haryana as a Private Limited Company under the provisions of Companies Act, 1956. The present Authorized Share Capital of the Applicant Company No.2 is Rs.20,00,00,000/- divided into 2,00,00,000 Equity Shares of Rs. 10/- each. The present Issued, Subscribed and paid-up Share Capital of the Company is Rs. 10,52,90,660/- divided into 1,05,29,066/- Equity Shares of Rs. 10/- each.

12. Key Management Technologies Private Limited (hereinafter referred to as "Applicant Company No.3") was originally incorporated on 04.01.2021 in the State of NCT of Delhi within jurisdiction of the Registrar of Companies, NCT of Delhi and Haryana as a Private Limited Company under the provisions of Companies Act, 1956.The present Authorized Share Capital of the Applicant Company No.2 is Rs.1,00,000/- divided into 1,00,000 Equity Shares of Rs. 1/- each. The present Issued, Subscribed and paid-up Share

Capital of the Company is Rs. 1,00,000/- divided into 1,00,000 Equity Shares of Rs. 1 each.

13. The Board of Directors of all the Applicant Companies vide separate meetings have unanimously passed resolutions and approved the proposed Scheme of Amalgamation as contemplated above and copies of resolutions have also been placed on record by the Companies.

14. Taking into consideration the application and the documents filed therewith, we propose to issue the following directions with respect to calling, convening and holding of the meetings of the Shareholders, Secured and Unsecured Creditors or dispensing with the same which are as follows: -

A. In relation to the Applicant Company No.1: -

i. *The meeting of equity shareholders is dispensed with as there are 5 equity shareholders and the equity shareholders holding more than 95% have given their consent affidavits in favour of the scheme have been placed on record.*

ii. *The meeting of Secured creditors is also dispensed with because there is no Secured creditor in the company and therefore, the requirement of convening meeting of Secured creditors does not arise.*

iii. The meeting of unsecured creditors is also dispensed with because are only 1 unsecured creditors in the company and their consent affidavits in favour of the Scheme have been placed on record.

B. In relation to the Applicant Company No.2: -

i. *The meeting of Equity Shareholders is dispensed with as there are only 15 equity shareholders in the company and the equity shareholders holding more than 95% have given their consent affidavits in favour of the scheme have been placed on record.*

ii. *The meeting of Secured creditors is also dispensed with because there are 1 secured creditor in the company and their consent affidavits in favour of the Scheme have been placed on record.*

iii. *The meeting of Unsecured creditors is also dispensed with because there are 1 unsecured creditor in the company and all of their consent affidavits in favour of the Scheme have been placed on record.*

C. In relation to the Applicant Company No.3: -

i. *The meeting of Equity Shareholders is dispensed with as there are 2 equity shareholders in the company and all the equity shareholders have given*

their consent affidavits in favour of the scheme have been placed on record.

ii. *The meeting of Secured creditors is also dispensed with because there is no Secured creditor in the company and therefore, the requirement of convening meeting of Secured creditors does not arise.*

iii. *The meeting of Unsecured creditors is also dispensed with because there is no unecured creditor in the company and therefore, the requirement of convening meeting of Secured creditors does not arise.*

D. In view of the above the present joint application stands allowed by dispensing with the meetings of shareholders and creditors of both the applicant companies.

E. The applicants are directed to serve notice of the proposed Scheme on the Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2nd Floor, Paryavaran Bhavan, CGO Complex, New Delhi-110 003, Registrar of Companies at 4th Floor, IFCI Tower, 61, Nehru Place, New Delhi-110 019; the Official Liquidator, Lok - Nayak -Bhavan, 8th Floor, Khan Market, New Delhi -110 001; the office of the Income Tax Department, Income Tax Officer, Ward – 7(4), Central Revenue Building, IP Estate, New Delhi-110 002 and Office of the Income Tax Department,

Income Tax Officer, Additional Commissioner of Income Tax, Special Range-4, Central Revenue Building, IP Estate, New Delhi-110 002

F. The notices to Income Tax authorities shall disclose sufficient details like PAN card numbers, ward numbers and assessing officers so that proper reply may be filed.

Let copy of the order be served to the parties.

-Sd-

(Narender Kumar Bhola)
MEMBER (TECHNICAL)

-Sd-

(Dr. P.S.N PRASAD)
MEMBER(JUDICIAL)